

HOUSE BILL 2651

By Gant

AN ACT to amend Chapter 75 of the Private Acts of 1969; as amended by Chapter 153 of the Private Acts of 1988 and Chapter 19 of the Private Acts of 2013; and any other acts amendatory thereto, relative to the City of Grand Junction.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 11 and substituting instead:

SECTION 11. BE IT FURTHER ENACTED, That the Board shall act in all matters as a body, and no member shall seek individually to influence the official acts of the Mayor or Alderman or any other officer or employee of the City, or to direct or request the appointment of any person to, or his/her removal from, any office or position of employment, or to interfere in any way with the performance of duties of the Board or any other officer or employee.

SECTION 11.01. BE IT FURTHER ENACTED, That the Board of Mayor and Aldermen may appoint a Town Administrator if the need arises, who shall be an employee of the town, and not a contract agent, and shall serve at the will and pleasure of the Board and may be terminated without cause by majority vote of the Board. Members of the Board of Mayor and Aldermen shall not serve in the dual role of Town Administrator and Mayor or Alderman. The Town Administrator shall be the chief administrative officer of the City reporting to and responsible to the Board. In the temporary absence of the Town Administrator, the Mayor shall appoint a qualified person to serve as Town Administrator during such absence. When a vacancy occurs in the position of Town Administrator, the Board of Mayor and Aldermen shall appoint an interim Town Administrator until a permanent replacement can be appointed.

SECTION 11.02. BE IT FURTHER ENACTED, That the Town Administrator:

- (1) Shall serve as the administrative head of the town and be responsible for the day-to-day operations of the City;
- (2) Shall administer the business of the City;
- (3) Shall prepare and recommend a municipal budget to the Board of Mayor and Aldermen and prepare and recommend budget amendments as needed;
- (4) Shall present to the governing body each month:
 - (a) A budget and actuals report;
 - (b) Cash and investment balances for the different funds of the City; and
 - (c) Other reports and information as requested by the Board;
- (5) Shall make recommendations to the Board for improving the quality and quantity of public services to be rendered by the officers and employees;
- (6) Shall keep the Board fully advised as to the conditions and needs of the City;
- (7) Shall report to the Board on the condition of all property, real and personal, owned by the City and recommend repairs or replacements as needed;
- (8) Shall recommend to the Board and suggest the priority of programs or projects involving public works or public improvements that should be undertaken by the City;
- (9) Shall recommend specific personnel positions, qualifications, and job descriptions, as may be required for the needs and operations of the City. All positions of employment, across all departments along with the job description, pay classification, and annual pay rate shall be approved by the Board of Mayor and Aldermen through the adoption of the annual budget and the appropriation of funds therein. No position shall be added, or any existing position modified by

job description, duties, or rate of pay, without the express consent of the Board of Mayor and Aldermen through an amendment to the budget;

(10) Shall employ, promote, discipline, and discharge employees in accordance with Board-approved personnel policies. The Board of Mayor and Aldermen approval shall be required for the employment and discharge of an appointed department head or any other position appointed by the Board;

(11) Shall, along with the Finance Director, oversee purchasing and accounts payable, track cash flow, ensure responsible use of City funds, and ensure all applicable state laws, rules, regulations, and City policies are complied with;

(12) May serve in any position within the City where certification is not required and in any position within the City where certification is required, when the Town Administrator maintains the required certification;

(13) Shall ensure that all ordinances of the City and all policies of the Board are enforced;

(14) Shall ensure that all applicable laws and regulations of the State and Federal Government are complied with; and

(15) Shall perform such other duties as may from time to time be designated or required by the Board.

SECTION 11.03. BE IT FURTHER ENACTED, That individual Board members are not to have or exercise direct authority over any of the personnel of the City but may contact such personnel for information gathering purposes to assist the Board in meeting their collective responsibilities; provided, that such contact is made in such a way as not to interfere with the operation of the department of the City involved. All other contact with personnel of the City by Aldermen shall be through the Town Administrator.

SECTION 11.04. BE IT FURTHER ENACTED, That the Mayor shall be the executive head of the City. The Mayor shall have such powers and duties as are

specified in this charter, as may be provided by ordinance not inconsistent with this charter, and as are otherwise provided by law. It shall be the duty of the Mayor to:

- (1) Preside at all meetings of the Board, to ensure the orderly conduct of meetings and that parliamentary procedures are followed;
- (2) Serve as the official representative of the City at public functions, ceremonies, and intergovernmental meetings;
- (3) Act as the spokesperson for the City in dealings with citizens, media, and other governments;
- (4) Issue proclamations, awards, or recognitions on behalf of the City;
- (5) Represent the City before the legislature, other public agencies, and community organizations;
- (6) Build partnerships and promote cooperation between local government and civic groups; and
- (7) Act as an advocate for City interests at the regional or state level.

SECTION 2. Chapter 75 of the Private Acts of 1969, as amended by Chapter 153 of the Private Acts of 1988, and any other acts amendatory thereto, is amended by deleting Section 15 and substituting instead:

SECTION 15. BE IT FURTHER ENACTED, That the Town Government shall be divided into such departments and offices as shall be provided by ordinance. The Board of Mayor and Aldermen shall determine by ordinance the functions and duties of all departments and offices. The Board of Mayor and Aldermen by ordinance may establish, abolish, merge, or consolidate offices, positions of employment, departments, and agencies of the city, may provide that the same person shall fill any number of offices and positions of employment, and may transfer or change the functions and duties of offices, positions of employment, departments, and agencies of the city, subject to the following limitations:

(1) The number of members and authority of the Board, as provided in this charter, shall not be changed; and

(2) All officers and employees of the City, except as otherwise specifically provided in this charter, shall be appointed and removed by and shall be under the direction and supervision of the Town Administrator, except that all Department Heads shall be appointed by majority vote of the Board of Mayor and Aldermen. All appointed Department Heads and other positions appointed by the Board of Mayor and Aldermen shall serve at the will and pleasure of the Board and may be terminated without cause by majority vote of the Board.

All appointed Department Heads, including the Town Administrator, shall be present at all Board meetings, including special called meetings unless specifically excused by the Board. The Department Heads appointed by the Board, or serving in that capacity by any means, shall possess and maintain at least at the minimum certifications and qualifications of their industry and the oversight bodies and laws of the State of Tennessee. Members of the various departments needing state or federal certifications to do their jobs must file with the City the certifications and continuing education certifications on a timely basis. Failure to maintain and file certifications and continuing education certifications on a timely basis shall be cause for immediate termination at the will of the Board. In any case, the employee will be assigned a period of correction in which the relevant certification or qualification shall be attained. During the period of the lapse of training or certification, the employee may be suspended without pay, or demoted to a lessor position, if one is available, until the certification or qualification is remedied.

SECTION 3. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 16 in its entirety.

SECTION 4. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 17 and substituting instead:

SECTION 17.01. BE IT FURTHER ENACTED, That the City Recorder shall be appointed by the Board of Mayor and Aldermen. He/she shall serve at such salary and with such other benefits incidental to his/her position as are provided by the Board and shall serve at the will of the Board. The City Recorder shall be subject to day-to-day supervision by the Town Administrator.

SECTION 17.02. BE IT FURTHER ENACTED, That it shall be the duty of the City Recorder to be present at all meetings of the Board and to prepare and maintain a full and accurate record of all business transacted by the same. In his/her absence from a meeting, the officer presiding at the meeting shall appoint a person to fulfill the duties of City Recorder.

SECTION 17.03. BE IT FURTHER ENACTED, That the City Recorder shall have custody of and preserve in his/her office the town seal, the public records, ordinance books, minutes of the board, contracts, bonds, titles, deeds, certificates and papers, all official indemnity or security bonds, and all other bonds, oaths, and affirmations, and all other records, papers, and documents not required by this charter or by ordinance to be deposited elsewhere, and register them by numbers, dates, and contents, and keep an accurate and current index thereof.

SECTION 17.04. BE IT FURTHER ENACTED, That the City Recorder shall provide and, when required, certify copies of records, papers, and documents in his/her office and charge therefor, for the use of the City, such fees as may be provided by ordinance or resolution; and cause copies of ordinances to be published as may be directed by the Board and kept in his/her office for distribution.

SECTION 17.05. BE IT FURTHER ENACTED, That the City Recorder shall also perform any other duties imposed upon him/her by this charter, by ordinance, by the Town Administrator or by the Board.

SECTION 5. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 27 and substituting instead:

SECTION 27. BE IT FURTHER ENACTED, That not later than 45 days prior to the beginning of each fiscal year, the Town Administrator shall submit to the Board a proposed budget for the next fiscal year, showing separately for the general fund, each utility, and each other fund the following:

- (1) Revenue and expenditures during the preceding year,
- (2) Estimated revenue and expenditures for the current fiscal year,
- (3) Estimated revenue and recommended expenditures for the next fiscal year, not to exceed the amount of estimated revenue,
- (4) A comparative statement of the cash surplus (or deficit) at the end of the preceding year and the estimated surplus (or deficit) at the end of the current fiscal year, and
- (5) Any other information and data, such as work programs and unit costs, in justification or recommended expenditures that may be considered necessary by the Town Administrator or requested by the Board. The Town Administrator may recommend and estimate receipts from additional revenue measures, providing such estimates are separated clearly from normal revenue estimates. The budget shall be accompanied by a message from the Town Administrator containing a statement of the general fiscal policies of the City, the important features of the budget, explanations of major changes recommended for the next fiscal year as compared with the current fiscal year, a general summary of the budget, and such other comments and information as he/she may deem pertinent. A sufficient number of copies of the Town Administrator's message shall be reproduced to furnish a copy of any person desiring one. A copy of the budget in full shall be filed with the City Treasurer and City Recorder for public inspection, and a copy shall be furnished to each member of the Board.

SECTION 6. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 28 and substituting instead:

SECTION 28. BE IT FURTHER ENACTED, That a capital improvement budget may also be prepared to include a description of projects recommended for the ensuing fiscal year and the five fiscal years thereafter, the estimated cost of each project, and the recommendations of the Town Administrator for financing the projects proposed for the ensuing year. The capital improvement budget shall be prepared by or reviewed by the local planning commission, and the recommendations of the planning commission shall be submitted by the Town Administrator to the Board concurrently with the annual budget. The Board of Mayor and Alderman may accept, reject, or revise the capital improvement budget as it deems desirable.

SECTION 7. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 29 and substituting instead:

SECTION 29. BE IT FURTHER ENACTED, That after receiving the Town Administrator's proposed budget, the Board shall fix a time and place for a public hearing thereon, and shall cause a public notice thereof and an announcement of where and when the full budget may be examined to be published two times in the official city newspaper, the last such publication to be at least 10 days in advance of the date of the hearing. The public hearing shall be held before the Board at the stated time and place, and all people present shall be given a reasonable opportunity to be heard.

SECTION 8. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 30 and substituting instead:

SECTION 30. BE IT FURTHER ENACTED, That after the public hearing and before the beginning of the ensuing fiscal year, the Board shall adopt an appropriation ordinance, based on the Town Administrator's proposed budget, with such modifications as the Board considers necessary or desirable. The Board shall not make any appropriations in excess of estimated revenue, except to provide for an actual emergency threatening the health, property, or lives of the inhabitants of the City declared by a vote of all members of Board. If emergency conditions prevent the

adoption of an appropriation ordinance before the beginning of the new fiscal year, the appropriations for the last fiscal year shall become the appropriations for the new fiscal year, subject to amendment as provided in this Section. Amendments may be made to the original appropriation ordinance at any time during a year only after the Town Administrator certifies in writing that a sufficient amount of unappropriated revenue will be available. Any portion of an annual budget remaining unexpended and unencumbered at the close of a fiscal year shall lapse and be subject to appropriation for the following year. Any balance remaining in any fund other than the general fund at the end of a fiscal year may remain to the credit of such fund and be subject to further appropriation. At the end of each month the Town Administrator shall submit to the Board a budget report showing revenue receipts, encumbrances, and expenditures for that month and for the fiscal year to the end of that month.

SECTION 9. Chapter 75 of the Private Acts of 1969, and any other acts amendatory thereto, is amended by deleting Section 31 and substituting instead:

SECTION 31. BE IT FURTHER ENACTED, That the Town Administrator shall be responsible for controlling expenditures of the various agencies of the City Government to accomplish maximum efficiency and economy. No expenditures shall be made in excess of appropriations.

SECTION 10. Chapter 75 of the Private Acts of 1969, as amended by Chapter 19 of the Private Acts of 2013, and any other acts amendatory thereto, is amended by deleting Section 34 and substituting instead:

SECTION 34. BE IT FURTHER ENACTED, That the Town Administrator may sell City personal property that is obsolete, surplus, or unusable by sealed bids or at public auction, as provided by ordinance; provided, however, that any sale for more than five hundred dollars (\$500.00) or any sale of real estate shall be subject to approval by the Board. Upon declaration of the Board declaring the property surplus, the Town

Administrator may sell any item valued at less than fifty dollars (\$50.00) without taking bids. The sale of each item shall be reported to the Board at its next meeting.

SECTION 11. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Grand Junction. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 12. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 11.